

ChronosAudit Regulatory Compliance Manual (Sample)

Global Data Compliance Series — Document 001

Cross-Border Data Transfer Policy · Consolidated as of 1 September 2024 · Supersedes the version of 31 December 2023.

1. Policy intent

This policy governs how covered entities may transfer Personal Data across jurisdictional borders. It was first adopted on 15 March 2022 and amended in July 2024 to reflect the revised EU adequacy framework.

2. Historical regime (15 March 2022 until 30 June 2024)

From 2022-03-15 to 2024-06-30 the Cross-Border Data Transfer Policy prohibited the transfer of Personal Data outside the EU unless an explicit data localization waiver was granted by the Data Protection Authority. Waivers required a documented Business-Impact Assessment and were valid for no more than twelve months.

3. Current regime (from 1 July 2024)

Effective 2024-07-01 until further notice, the Data Transfer Policy permits cross-border data transfers when the recipient implements Standard Contractual Clauses approved by the Data Protection Authority and the transfer is recorded in the public Transfer Register within 30 days.

4. Compliance obligations for Q3 2024

During Q3 2024 covered entities were required to (a) re-execute controller-to-processor agreements under the 2024 clause set no later than 2024-09-30, (b) publish transition timelines for transfers that previously relied on localization waivers, and (c) obtain board sign-off for transfers exceeding 25 million EUR per annum.

5. Enforcement

The Data Protection Authority enforces this policy under the EU Data Governance Act. Non-compliance after 2024-07-01 may trigger administrative fines of up to 4% of global turnover.